

25STCV22753 25STCV22753

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Case Number: 25STCV22753 Hearing Date: August 12, 2026 Dept: 510

No. 11 - Dominic Dean Ulanday

Jaurigue v. The Mountains Recreation and Conservation Authority, et al.

Defendant State of California's Demurrer to Plaintiff's Complaint

Defendant State of California demurs to the first, third, and fourth causes of action alleged by Plaintiff Dominic Dean Ulanday Jaurigue in his complaint.

Request for Judicial Notice

Defendant requests the Court take judicial notice of Plaintiff's government claim. This document is subject to judicial notice under Evidence Code section 452(c). However, this document is judicially noticeable only for its existence, but not the truth of its contents.

Defendant also requests the Court take judicial notice of declarations from the Fleet Operations Manager and the Senior Real Estate Officer from the Department of General Services. These documents are not judicially noticeable as "official acts" of the State. They are declarations from state employees.

Defendant's request for judicial notice is granted in part as to Exhibit A only.

Uncertainty

Defendant contends that the complaint is uncertain because it fails to specify the state department or agency that is allegedly liable. "A

demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) “ ‘ ‘Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” ’ ’ ” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, alterations omitted.) The complaint must sufficiently apprise defendants of the claims against them. (Ibid.) Here, this omission does not prevent Defendant from answering the claims alleged against it.

Sufficiency of Allegations

A.

First

Cause of Action: Motor Vehicle Negligence

The State cannot be held directly liable for negligence. “[A]ll government tort liability must be based on statute.” (County of San Bernardino v. Superior Court (2022) 77 Cal.App.5th 1100, 1107.) “ ‘[S]overeign immunity is the rule in California; governmental liability is limited to exceptions specifically set forth by statute.’ ” (Id. at p. 1108.) Because the State is a public entity, Plaintiff must provide a statutory basis for liability. He did not do so here.

However, Government Code section 815.2 provides: “A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, § 815.2(a).) This statute codifies public entities’ vicarious liability under the “doctrine of respondeat superior.” (Mary M. v. City of Los Angeles (1991) 54 Cal.3d 202, 209.) Defendant can thus only be held liable for negligence if its individual employee is liable.

Plaintiff alleges sufficient facts on this basis. For negligence, a public entity employer can only be liable if its employees breached a common law duty of care to the plaintiff. (Hoff v. Vacaville Unified School Dist. (1998) 19 Cal.4th 925, 933.) The complaint alleges all required elements for the Defendant’s employee’s negligence: duty,

breach, causation, and damages. (See Compl., ¶¶ 27-29.)

Defendant argues that it cannot be liable for Defendant Jose Leon's negligence because Defendant Leon is not a government employee. For support, Defendant urges the Court to look at the contents of a traffic collision report provided as part of Plaintiff's government claim. However, the truth of the government claim is not subject to judicial notice. The Court is limited to the contents of the complaint and any judicially noticeable documents when ruling on a demurrer. General demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (Code Civ. Proc. §§ 430.30, 430.70; Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) Here, the complaint alleges that Defendant Jose Leon was "operating the Subject Government Vehicle #1 as an employee and/or agent of the Government Defendants when the Crash occurred." (Compl., ¶ 45.) This is sufficient at the pleading stage to state a claim.

The demurrer as to the first cause of action is overruled.

B.

Third

Cause of Action: Violation of Gov't Code § 815 et seq.

Violation of Government Code section 815.2 is not a standalone cause of action. To the extent that Plaintiff intends to use this statute to show Defendant's vicarious liability for negligence, this cause of action is duplicative of the first cause of action.

The demurrer as to the third cause of action is sustained without leave to amend.

C.

Fourth

Cause of Action: Dangerous Condition of Public Property

Defendant argues that this claim was not included as part of Plaintiff's required government claim. As such, Defendant did not comply with claim presentation requirements as to this cause of action. In opposition, Plaintiff concedes that he did not include this in his government claim. (See Opp., at p. 7.) Under the

Government Claims Act, a plaintiff must present any claim for damages against the government before bringing a civil action. (Gov. Code, § 945.4; City of Stockton v. Superior Court (2007) 42 Cal.4th 730, 737–738.) Therefore, Plaintiff's failure to raise this issue in his government claim precludes him from bringing it in a civil action now.

The demurrer as to the fourth cause of action is sustained without leave to amend.

Disposition

Defendant State of California's demurrer to Plaintiff's complaint is sustained without leave to amend as to the third and fourth cause of action and overruled as to the first cause of action. The State is to file its answer within 21 days.